

**IN THE UNITED STATES DISTRICT COURT FOR
THE DISTRICT OF UTAH**

**MATTHEW REARDON,
PLAINTIFF,**

v.

Civil Action No. 1:25-cv-00041-JCB

**CITY OF LAYTON, UTAH;
LAYTON POLICE DEPARTMENT;
CITY OF OXFORD, MISSISSIPPI;
OXFORD POLICE DEPARTMENT.
CAPTAIN HILDON SESSUMS,
(Individual and official capacities);
CHIEF JEFF MCCUTCHEN,
(Individual and official capacities);
LIEUTENANT RILEY RICHINS,
(Individual and official capacity);
MARK ARRINGTON,
(Individual and official capacity);
JOHN DOES 1-139,
DEFENDANTS.**

FIRST AMENDED COMPLAINT FOR DAMAGES AND INJUNCTIVE RELIEF

JURY TRIAL DEMANDED

I. INTRODUCTION

1. This is a civil rights action brought under 42 U.S.C. §§ 1983 and 1985 for declaratory, injunctive, and monetary relief arising from coordinated surveillance, retaliatory conduct, defamation, and obstruction of records access by government officials in Layton, Utah and Oxford, Mississippi.
2. Plaintiff Matthew Reardon is a journalist, author, and public transparency advocate. He brings this action to redress harm caused by state and local officials acting in concert to silence and retaliate against him for protected First Amendment activity.

II. JURISDICTION AND VENUE

3. This Court has subject matter jurisdiction under 28 U.S.C. § 1331 and civil rights jurisdiction under 28 U.S.C. § 1343.
4. The Court has supplemental jurisdiction over related state law claims pursuant to 28 U.S.C. § 1367.
5. Venue is proper in this District under 28 U.S.C. § 1391(b) because a substantial part of the events giving rise to the claims occurred in Utah.

III. PARTIES

6. Plaintiff Matthew Reardon resides in Davis County, Utah, and is an independent investigative journalist, constitutional rights advocate, and author with his first book set to

be published in April 2025. Plaintiff actively engages in public transparency work and journalism targeting government accountability.

7. Defendant City of Layton is a municipal entity located in Davis County, Utah. It establishes policies, procedures, and practices for City departments, including the Police Department, and is responsible for ensuring that its employees comply with federal and state law.
8. Defendant Layton Police Department is a division of the City of Layton that operates under policies, practices, and customs established by the City of Layton.
9. Defendant City of Oxford, Mississippi is a municipal corporation responsible for oversight of its police department and municipal employees, and for establishing policies, procedures, and practices ensuring compliance with federal and state law.
10. Defendant Oxford Police Department is a division of the City of Oxford that operates under policies, practices, and customs established by the City of Oxford.
11. Defendant Captain Hildon Sessums is a sworn officer with Oxford Police Department who, at all times relevant to this Complaint, acted under color of state law. He personally participated in obtaining and disseminating Plaintiff's private information and defamatory statements about Plaintiff.

12. Defendant Chief Jeff McCutchen is the Chief of Oxford Police Department who, at all times relevant to this Complaint, acted under color of state law. He personally participated in and/or had knowledge of, approved, and ratified the conduct of Defendant Sessums.
13. Defendant Lieutenant Riley Richins is a Layton Police Department officer who, at all times relevant to this Complaint, acted under color of state law. He personally participated in disseminating false and defamatory information about Plaintiff throughout Layton City government.
14. Defendant Mark Arrington is Layton City Prosecutor who, at all times relevant to this Complaint, acted under color of state law. He personally participated in obstructing Plaintiff's access to public records under Utah's Government Records Access and Management Act (GRAMA) and imposing unlawful conditions on that access.
15. Defendants JOHN DOES 1-139 are individuals whose names and capacities are presently unknown but who were direct recipients of a department-wide internal email sent by Defendant Lieutenant Riley Richins on February 5, 2025, containing false and defamatory information about Plaintiff. These individuals may have further disseminated or acted upon that information. Plaintiff will amend this Complaint to substitute their true names and capacities when ascertained.

IV. FACTUAL ALLEGATIONS

A. Background

16. Plaintiff Matthew Reardon relocated to Layton, Utah on February 1, 2025, continuing his work under the pseudonym "Don Matthews" to protect his safety.
17. Plaintiff used the name "Don Matthews" when submitting GRAMA requests or engaging with public officials due to prior harassment and intimidation related to his journalism and transparency advocacy.
18. No part of Plaintiff's online presence—including YouTube, Facebook, or public records—contained identifying information tying "Don Matthews" to "Matthew Reardon." Plaintiff took specific measures to maintain this separation for his personal safety.

B. Unlawful Surveillance and Privacy Invasion

19. On or before February 4, 2025, Oxford Police Captain Hildon Sessums obtained Plaintiff's private Utah address and real name through means that could not have been lawful public channels.
20. Plaintiff moved into his Layton residence late on February 1, 2025, and had not yet disclosed this address to any public or private entity, had not updated any government records with this address, and had not even memorized it himself, relying on a text message from his landlord when he needed the address.
21. On February 5, 2025, Defendant Sessums sent an unsolicited email to multiple recipients at Layton Police Department containing Plaintiff's full legal name, exact Utah residential

address, criminal history, and commentary suggesting Plaintiff was dangerous and in need of monitoring.

22. In this email, Sessums falsely stated that Plaintiff's address was obtained through "research," despite the fact that the address was not available in any public database, record, or resource at that time. This demonstrates that Sessums necessarily obtained Plaintiff's private residential address through either unlawful surveillance, illegal access to confidential records, or unauthorized misuse of governmental resources.

23. Sessums' email specifically identified Plaintiff's new address as 1513 W 1960 N, Layton, UT 84041, the exact address Plaintiff had moved to just days before.

24. Defendant Chief McCutchen, as Sessums' superior, knew or should have known of Sessums' actions and approved of, ratified, and failed to remedy this unlawful conduct when directly confronted about it by Plaintiff in a subsequent phone conversation on March 27, 2025.

C. Defamation and False Statements

25. On February 5, 2025, Lieutenant Riley Richins of Layton PD forwarded Sessums' email internally to 139 Layton City employees with an added comment that falsely stated that Plaintiff had been "arrested in 2017 for stalking the Mayor in Oxford."

26. This statement was categorically false. Plaintiff was arrested in 2017 for an incident involving an alleged private individual—not anything to do with the Mayor of Oxford or any other public official.

27. Richins' statement constituted defamation per se, as it falsely alleged criminal conduct involving a public official. The statement was made with either knowledge of its falsity or reckless disregard for its truth, as Richins failed to verify this information before disseminating it to 139 city employees.

28. The widespread dissemination of this false statement throughout Layton City government created a hostile environment for Plaintiff and impeded his ability to engage with government officials and exercise his First Amendment rights.

D. GRAMA Obstruction and Retaliation

29. On February 20, 2025, Plaintiff visited Layton City Hall to follow up on an overdue GRAMA request for police reports, 911 call logs, and officer body cam footage from a prior incident where he was recording video from a public sidewalk.

30. Layton PD refused to release any records unless Plaintiff showed government-issued ID, a condition not required under Utah GRAMA law, Utah Code § 63G-2-101, et seq.

31. Plaintiff met with City Prosecutor Mark Arrington to attempt to resolve the issue. During this meeting, Arrington unlawfully implied that use of the alias "Don Matthews" could be

criminal if used on official documents—despite no fraud, impersonation, or misrepresentation having occurred.

32. Arrington further stated he had to personally approve whether records would be released, contradicting prior communications from Layton's records division, and thereby imposing additional, non-statutory barriers to Plaintiff's records access.

33. On February 21, 2025, Plaintiff received a phone call from Defendant Mark Arrington. During the call, Arrington referred to Plaintiff as "Matthew," demonstrating knowledge of Plaintiff's legal identity despite Plaintiff having used only "Don" in prior communications.

34. When Plaintiff challenged this, Arrington responded that he knew Plaintiff's legal name was Matthew Reardon from Lafayette County, Mississippi and referenced Plaintiff's unrelated legal issues in Galveston, Texas—clearly indicating access to sensitive, nonpublic background information.

35. Arrington told Plaintiff that his requested records were ready but would only be released if Plaintiff came to the Layton Police Department in person and presented government issued identification. When Plaintiff requested electronic transmission or third-party pickup—options available under GRAMA—Arrington refused both alternatives, insisting on Plaintiff's personal appearance with ID.

36. This demand constituted deliberate intimidation and retaliation, especially in light of Plaintiff's previous experience being lured to a police station in Galveston, Texas under false pretenses to retrieve his car keys, only to be arrested based on a warrant from Lafayette County, Mississippi—an incident currently subject to separate litigation.
37. As a direct result of this coercive behavior, Plaintiff was forced to abandon his request for non-privileged, lawfully accessible public records.
38. On March 13, 2025, Plaintiff submitted a detailed GRAMA request asking for call logs, emails, and communications between February 3 and March 13, 2025, involving his name or pseudonym.
39. Layton City failed to acknowledge the request until the legal deadline approached. On March 25, 2025, the tenth business day, Layton City Recorder Kimberly Reed produced only a call log showing calls made to or from Plaintiff's own phone number—information he already possessed—rather than the internal phone records and communications he had requested.
40. Reed did produce emails including Sessums' February 5 email and Richins' subsequent dissemination, which is how Plaintiff first learned of the defamatory statements made about him.

41. Layton City also withheld a known call recording involving Mark Arrington, which a records employee had previously acknowledged existed.
42. On March 28, 2025, Plaintiff called Layton City to follow up with Reed about the missing items from his GRAMA request.
43. Plaintiff was informed by Legal staff that because of "pending litigation" (which had not yet been filed), he was only allowed to speak with Mark Arrington—a named future defendant in this lawsuit—for anything involving GRAMA, creating an unethical conflict of interest and effectively blocking access to a neutral records official.

E. Coordinated Efforts Between Jurisdictions

44. On March 27, 2025, Plaintiff confronted Defendant Chief Jeff McCutchen directly in a recorded phone call, explicitly detailing the impossibility of Defendant Sessums's lawful acquisition of Plaintiff's private residential address.
45. Despite Plaintiff's clear and specific allegation that Sessums had engaged in unlawful surveillance or unauthorized acquisition of Plaintiff's personal information, Chief McCutchen failed to deny the allegation, failed to provide any plausible explanation, and explicitly refused Plaintiff's request to initiate an internal investigation into Sessums's misconduct.
46. McCutchen's refusal to act demonstrates a deliberate indifference and tacit approval of Defendant Sessums's constitutional violations, further evidencing the existence of a

widespread pattern, practice, and policy within the Oxford Police Department and its municipal governance to tolerate, condone, and facilitate constitutional abuses against individuals exercising protected First Amendment activities.

47. The coordinated actions between Oxford, Mississippi officials and Layton, Utah officials—specifically the transfer of unlawfully obtained personal information, the concerted effort to characterize Plaintiff as dangerous, and the mutual obstruction of Plaintiff's transparency efforts—demonstrate a conspiracy to deprive Plaintiff of his constitutional rights.

F. Additional Incidents Demonstrating Pattern of Retaliation and Obstruction

48. On March 31, 2025, Plaintiff visited the FBI Salt Lake City Field Office to submit an affidavit alleging serious misconduct and potential federal crimes by Captain Hildon Sessums of the Oxford Police Department.

49. Plaintiff sought to report evidence of unauthorized surveillance, civil rights violations, and the unlawful acquisition and dissemination of his private residential information as detailed in previous paragraphs of this Complaint.

50. The timing of this attempt was significant, as it occurred after Plaintiff's unsuccessful attempts to have Defendant McCutchen investigate Sessums' misconduct and after Plaintiff's discovery of the apparent coordination between Oxford and Layton officials.

51. Despite Plaintiff's lawful purpose, FBI personnel refused to accept Plaintiff's affidavit or supporting documentation unless Plaintiff first submitted to a full background check and provided his driver's license for identification verification.

52. Plaintiff asserted his Fourth Amendment right against unreasonable search and seizure, explaining that requiring crime victims to surrender constitutional rights as a precondition to reporting criminal conduct creates an unlawful barrier to justice.

53. After FBI personnel refused to accept the documentation, Plaintiff began recording in the publicly accessible visitor parking lot, narrating the events that had transpired and reading from his declaration while standing outside the secure perimeter.

54. Two FBI agents then approached Plaintiff without warning and ordered him to leave immediately under threat of arrest for trespassing, despite Plaintiff's presence in a publicly accessible area designated for visitors.

55. The agents claimed the public visitor parking lot was "FBI-owned private property" and that Plaintiff was "no longer welcome," stating "If you don't leave, you will be charged."

56. Additionally, an agent walked around Plaintiff's vehicle and recorded his license plate number, escalating the surveillance and intimidation.

57. Plaintiff believes this hostile response was connected to Defendant Sessums' relationship with the FBI, as Sessums has previously identified himself as a graduate of the FBI National Academy, a potential explanation for how Sessums obtained Plaintiff's private information and the apparent coordination in suppressing Plaintiff's speech and transparency efforts.

58. This incident represents a continuation of the pattern of retaliation, obstruction, and suppression of Plaintiff's constitutional rights that began with the actions of the named Defendants and has expanded to effectively block Plaintiff's access to law enforcement complaint mechanisms.

59. The FBI's conduct reinforces the allegations that Defendants have engaged in a far-reaching conspiracy to silence Plaintiff's First Amendment activities and prevent accountability for the constitutional violations described herein.

V. CLAIMS FOR RELIEF

COUNT I: First Amendment Retaliation (42 U.S.C. § 1983) *Against Sessums, Richins, Arrington, McCutchen, and John Does 1-139*

60. Plaintiff re-alleges and incorporates by reference all preceding paragraphs as if fully set forth herein.

61. The First Amendment to the United States Constitution protects the rights to free speech, free press, and to petition the government for redress of grievances.

62. Plaintiff engaged in constitutionally protected activities by:

- a) Conducting occasional "first amendment audits" of public institutions, which courts have recognized as protected expressive conduct;
- b) Filing GRAMA requests seeking public information about government operations;
- c) Working as a journalist and transparency advocate documenting government activities;
- d) Planning publication of a book exposing government misconduct.

63. Defendants took adverse actions against Plaintiff, including:

- a) Unlawfully surveilling him and obtaining his private residential address;
- b) Disseminating false and defamatory information about him to government officials;
- c) Imposing unlawful barriers to his access to public records;
- d) Creating a hostile environment among Layton City employees toward him;
and
- e) Attempting to intimidate him through requiring his physical presence at the police department.

64. There is a direct causal relationship between Plaintiff's protected activities and

Defendants' adverse actions, as evidenced by:

- a) The timing of Defendants' actions occurring immediately after Plaintiff began conducting transparency activities in Layton;

- b) Defendants' explicit references to Plaintiff's First Amendment activities in their communications;
- c) The extraordinary efforts taken to identify, monitor, and label Plaintiff; and
- d) Defendants' deviation from standard procedures in handling Plaintiff's records requests.

65. Defendants' actions would deter a person of ordinary firmness from continuing to engage in the protected activity, as demonstrated by Plaintiff's forced abandonment of his records requests.

66. As a direct and proximate result of Defendants' unlawful conduct, Plaintiff has suffered actual damages including emotional distress, reputational harm, and deprivation of his constitutional rights.

COUNT II: Fourth Amendment - Unlawful Seizure and Surveillance (42 U.S.C. § 1983)
Against Sessums and McCutchen (individual capacities)

67. Plaintiff re-alleges and incorporates by reference all preceding paragraphs as if fully set forth herein.

68. The Fourth Amendment protects the right of people to be secure in their persons, houses, papers, and effects against unreasonable searches and seizures.

69. Plaintiff had a reasonable expectation of privacy in his residential address, which was not publicly available or disclosed to any public or governmental entity at the time

Sessums obtained it.

70. Defendant Sessums obtained Plaintiff's private residential address without legal authorization, warrant, or legitimate law enforcement purpose, as conclusively evidenced by the impossibility of obtaining this information through any lawful channel.

71. Defendant Sessums then seized this private information and disseminated it to Layton officials without any legitimate law enforcement purpose.

72. Defendant McCutchen, upon learning of Sessums' conduct, ratified and approved of this Fourth Amendment violation by refusing to investigate it when directly informed by Plaintiff.

73. As a direct and proximate result of Defendants' unlawful conduct, Plaintiff has suffered actual damages including emotional distress, fear for his personal safety, and deprivation of his constitutional rights.

COUNT III: Fourteenth Amendment - Due Process & Equal Protection (42 U.S.C. § 1983)
Against Layton City, Richins, Arrington, and John Does 1-139

74. Plaintiff re-alleges and incorporates by reference all preceding paragraphs as if fully set forth herein.

75. The Fourteenth Amendment prohibits state actors from depriving any person of life, liberty, or property without due process of law, and from denying any person the equal protection of the laws.

76. Defendants violated Plaintiff's procedural due process rights by:

- a) Imposing arbitrary and non-statutory requirements on his access to public records;
- b) Creating a system where his only point of contact regarding GRAMA requests was a defendant with a direct conflict of interest; and
- c) Providing no meaningful process to challenge these restrictions.

77. Defendants violated Plaintiff's substantive due process rights by:

- a) Disseminating false and defamatory information about him throughout city government;
- b) Acting with deliberate indifference to the stigmatizing effect of such dissemination; and
- c) Creating barriers to his access to government services not imposed on other citizens.

78. Defendants violated Plaintiff's equal protection rights by:

- a) Singling him out for differential treatment because of his identity as a journalist and transparency advocate;
- b) Imposing burdens and restrictions not placed on other similarly situated citizens; and
- c) Treating his records requests differently than those of other requesters without any rational basis for the distinction.

79. As a direct and proximate result of Defendants' unlawful conduct, Plaintiff has suffered actual damages including emotional distress, reputational harm, and deprivation of his constitutional rights.

COUNT IV: Civil Conspiracy (42 U.S.C. §§ 1983, 1985)
Against Sessums, Richins, Arrington, McCutchen, and John Does 1-139

80. Plaintiff re-alleges and incorporates by reference all preceding paragraphs as if fully set forth herein.

81. Defendants entered into an agreement to deprive Plaintiff of his constitutional rights, as evidenced by:

- a) The coordinated transfer of unlawfully obtained personal information between jurisdictions;
- b) The near-simultaneous actions taken to characterize Plaintiff as dangerous;
- c) The consistent application of barriers to Plaintiff's records access across departments; and
- d) The uniform refusal of supervisory officials to address or remedy constitutional violations when informed of them.

82. In furtherance of this conspiracy, Defendants committed specific overt acts including:

- a) Sessums unlawfully obtaining and disseminating Plaintiff's private address;
- b) Richins adding false defamatory content and widely distributing the information;
- c) Arrington imposing unlawful conditions on Plaintiff's records access; and

d) McCutchen ratifying Sessums' conduct and refusing to investigate it.

83. Each participant in the conspiracy was aware of the general objective to silence and deter

Plaintiff's First Amendment activities, as demonstrated by:

- a) Their explicit references to Plaintiff's transparency work in communications;
- b) Their efforts to characterize him as dangerous specifically in connection with his First Amendment audits; and
- c) Their coordinated efforts to obstruct his access to public information.

84. As a direct and proximate result of Defendants' conspiracy, Plaintiff has suffered actual damages including emotional distress, reputational harm, and deprivation of his constitutional rights.

COUNT V: Defamation (State Law)

Against Sessums, Richins, and John Does 1-139 (individual capacities)

85. Plaintiff re-alleges and incorporates by reference all preceding paragraphs as if fully set forth herein.

86. Defendants published false statements of fact about Plaintiff, specifically:

- a) Sessums falsely suggested that Plaintiff was dangerous and a "persistent issue" requiring monitoring; and
- b) Richins falsely stated that Plaintiff had been "arrested in 2017 for stalking the Mayor in Oxford."

87. These statements were defamatory per se as they falsely accused Plaintiff of criminal conduct, specifically stalking a public official.

88. The statements were published to third parties when:

- a) Sessums sent the email to multiple Layton officials; and
- b) Richins forwarded the email with his additional false content to 139 city employees.

89. The publication was not privileged because:

- a) The statements were knowingly or recklessly false;
- b) The dissemination went beyond any legitimate law enforcement purpose; and
- c) The widespread distribution to 139 recipients exceeded any qualified privilege.

90. Defendants acted with actual malice as they either knew the statements were false or acted with reckless disregard for their truth, as evidenced by:

- a) The complete lack of factual basis for the claim that plaintiff was arrested and charged with "stalking the Mayor" in 2017;
- b) The failure to verify this serious allegation before broadcasting it; and
- c) The unnecessary breadth of the dissemination.

91. As a direct and proximate result of Defendants' defamatory statements, Plaintiff has suffered actual damages to his reputation, emotional distress, and impairment of his ability to effectively engage with government officials.

COUNT VI: Invasion of Privacy - Intrusion upon Seclusion (State Law)
Against Sessums (individual capacity)

92. Plaintiff re-alleges and incorporates by reference all preceding paragraphs as if fully set forth herein.

93. Plaintiff had a reasonable expectation of privacy in his residential address, which was not publicly available or disclosed to any public entity.

94. Defendant Sessums intentionally intruded upon Plaintiff's private affairs by:

- a) Obtaining his private residential address through unlawful means; and
- b) Disseminating this private information without authorization or legitimate purpose.

95. This intrusion would be highly offensive to a reasonable person given:

- a) The impossibility of legally obtaining the information at that time;
- b) The clear intention to use this information to monitor and potentially intimidate Plaintiff; and
- c) The unnecessary dissemination of this private information to multiple third parties.

96. As a direct and proximate result of Defendant's invasion of privacy, Plaintiff suffered actual damages including emotional distress, fear for his personal safety, and loss of the security of his private residence.

COUNT VII: Intentional Infliction of Emotional Distress (State Law)
Against all Defendants (individual capacities)

97. Plaintiff re-alleges and incorporates by reference all preceding paragraphs as if fully set forth herein.

98. Defendants engaged in extreme and outrageous conduct by:

- a) Conducting unlawful surveillance to obtain Plaintiff's private address;
- b) Falsely labeling him as dangerous and accusing him of stalking public officials;
- c) Disseminating these false statements throughout city government; and
- d) Attempting to coerce him into appearing at a police station after establishing a pattern of using such appearances to detain him.

99. This conduct exceeds all bounds of decency and would be regarded as atrocious and utterly intolerable in a civilized society.

100. Defendants acted intentionally or recklessly, as demonstrated by: a. The deliberate measures taken to obtain private information; b. The unnecessary breadth of dissemination of defamatory content; and c. The calculated attempt to intimidate Plaintiff through reference to prior incidents where he was detained.

101. As a direct and proximate result of Defendants' extreme and outrageous conduct, Plaintiff has suffered severe emotional distress including fear, anxiety, humiliation, and loss of security in his new residence.

COUNT VIII: Monell Liability - Municipal Defendants (42 U.S.C. § 1983)

Against Layton City, Layton Police Department, City of Oxford, and Oxford Police Department

102. Plaintiff re-alleges and incorporates by reference all preceding paragraphs as if fully set forth herein.

103. The municipal Defendants are liable for constitutional violations committed by their employees and agents pursuant to *Monell v. Dep't of Social Servs.*, 436 U.S. 658 (1978).

104. The constitutional violations alleged herein were caused by Official policies, as demonstrated by:

- a) Layton City's policy of imposing non-statutory identification requirements for GRAMA requests;
- b) Oxford PD's policy of monitoring and surveilling individuals engaged in protected First Amendment activities; and
- c) Both municipalities' policies of broadly disseminating derogatory information about individuals exercising First Amendment rights.

105. Customs or practices so persistent and widespread as to constitute de facto policy, as evidenced by:

- a) The consistent pattern of obstruction of Plaintiff's records requests across multiple departments;
- b) The routine practice of monitoring and investigating "First Amendment auditors" without reasonable suspicion of criminal activity; and
- c) The pattern of information sharing between departments that exceeds legitimate law enforcement purposes.

106. Decisions of officials with final policymaking authority, specifically:

- a) Chief McCutchen's explicit refusal to investigate Sessums' unlawful conduct when directly informed of it;
- b) Arrington's implementation of non-statutory barriers to records access; and
- c) The decision to route all of Plaintiff's GRAMA requests through a named defendant.

107. Deliberate indifference in training and supervision, as shown by:

- a) The failure to train officers on the proper handling of First Amendment protected activities;
- b) The failure to supervise officers' use of law enforcement databases and resources; and
- c) The failure to implement adequate safeguards against retaliatory conduct.

108. As a direct and proximate result of the municipal Defendants' policies, customs, decisions, and failures, Plaintiff has suffered actual damages including emotional distress, reputational harm, and deprivation of his constitutional rights.

COUNT IX: GRAMA Violations (Utah Code § 63G-2-101, et seq.)

Against Layton City and Arrington

109. Plaintiff re-alleges and incorporates by reference all preceding paragraphs as if fully set forth herein.

110. Utah's Government Records Access and Management Act (GRAMA) establishes the right of access to public records with limited exceptions.

111. GRAMA does not require requesters to present identification to access nonprivate records.

112. GRAMA does not require requesters to appear in person to receive records.

113. GRAMA establishes specific timelines for responding to records requests.

114. Defendants violated GRAMA by:

- a) Requiring Plaintiff to present government issued identification to access non-private records;
- b) Refusing to provide records electronically or through a third-party designee;
- c) Failing to properly respond to Plaintiff's March 13, 2025 request within statutory timelines;
- d) Withholding responsive records without statutory justification; and
- e) Creating additional non-statutory barriers to records access.

115. As a direct and proximate result of Defendants' GRAMA violations, Plaintiff has been deprived of his statutory right to access public records and has been forced to abandon legitimate records requests.

COUNT X: Intentional Infliction of Emotional Distress (Tort of Outrage)
Against Sessums, McCutchen, Richins, Arrington, and John Does 1-138

105. Plaintiff re-alleges and incorporates by reference all preceding paragraphs as if fully set forth herein.

106. Defendants' conduct—including unlawful surveillance, unauthorized disclosure of Plaintiff's confidential residential address, deliberate defamation, harassment, retaliatory misuse of law enforcement resources, and intentional acts to intimidate, threaten, discredit, and silence Plaintiff—constitutes extreme and outrageous behavior that goes beyond all possible bounds of decency.
107. Defendants acted intentionally and/or recklessly, knowing or having reason to know that their unlawful and retaliatory actions would result in severe emotional distress to Plaintiff.
108. Defendants' conduct was especially egregious given their knowledge of Plaintiff's prior traumatic experiences with law enforcement, specifically the Galveston incident where he was lured to a police station under false pretenses.
109. As a direct and proximate result of Defendants' unlawful conduct, Plaintiff has suffered severe emotional distress, humiliation, anxiety, trauma, fear, anger, damage to his reputation, and interference with his personal, professional, and familial life.

COUNT XI: Abuse of Process (State Law)

Against Arrington and Layton City

110. Plaintiff re-alleges and incorporates by reference all preceding paragraphs as if fully set forth herein.
111. Defendant Arrington used legal processes available to him as a city prosecutor and records custodian when he:

- a) Imposed non-statutory identification requirements on Plaintiff's GRAMA requests;
- b) Required Plaintiff to physically appear at the police department to receive records despite GRAMA allowing alternative methods of delivery; and
- c) Implied potential criminal consequences for using an alias without any factual or legal basis for such implications.

112. Defendant Arrington used these processes primarily to accomplish an improper purpose, specifically:

- a) To intimidate Plaintiff by requiring his appearance at a police facility, knowing of Plaintiff's prior experience being lured to police stations under false pretenses;
- b) To obstruct Plaintiff's lawful access to public records related to his First Amendment activities; and
- c) To retaliate against Plaintiff for his transparency advocacy and journalism.

113. The improper purpose is evidenced by:

- a) Arrington's explicit reference to Plaintiff's unrelated legal matters in Texas and Mississippi during their conversations;
- b) The insistence on in-person appearance despite the availability of electronic transmission or third-party pickup under GRAMA; and
- c) The implementation of a conflict-ridden process requiring Plaintiff to deal exclusively with Arrington.

114. As a direct and proximate result of Defendant's abuse of process, Plaintiff has suffered actual damages including the effective denial of his statutory right to access public records, emotional distress, and chilling of his First Amendment activities.

COUNT XII: Negligent Supervision and Training (State Law and § 1983)
Against Layton City, City of Oxford, McCutchen, and Municipal Supervisors

115. Plaintiff re-alleges and incorporates by reference all preceding paragraphs as if fully set forth herein.

116. Defendants Layton City and City of Oxford had a duty to properly supervise and train their employees, particularly regarding:

- a) Constitutional limitations on surveillance and information gathering;
- b) Proper handling of GRAMA requests and public records access;
- c) Restrictions on disseminating defamatory or private information; and
- d) Respect for First Amendment protected activities.

117. Defendants breached this duty by:

- a) Failing to implement adequate training on constitutional limitations of surveillance;
- b) Failing to train employees on proper GRAMA procedures and constitutional requirements;
- c) Failing to supervise employees' use of law enforcement databases and sharing of private information; and

- d) Failing to discipline employees who violated established policies and constitutional rights.

118. Defendant McCutchen specifically failed to supervise Sessums despite:

- a) Direct notice of Sessums' unlawful acquisition of Plaintiff's private address;
- b) The implausibility of Sessums' explanation for obtaining this information; and
- c) The clear impropriety of sharing such information across jurisdictions.

119. The inadequate supervision and training was unreasonable under the circumstances, particularly given:

- a) The sensitive nature of law enforcement databases and private information;
- b) The constitutional implications of monitoring First Amendment activities; and
- c) The potential for abuse when handling those perceived as government critics.

120. As a direct and proximate result of Defendants' negligent supervision and training, Plaintiff has suffered actual damages including invasion of privacy, reputational harm, emotional distress, and violation of his constitutional rights.

COUNT XIII: Violations of the Utah Constitution
Against All Defendants

121. Plaintiff re-alleges and incorporates by reference all preceding paragraphs as if fully set forth herein.

122. Article I, Section 1 of the Utah Constitution guarantees that "All men have the inherent and inalienable right to enjoy and defend their lives and liberties; to acquire, possess and protect property..."

123. Article I, Section 7 of the Utah Constitution provides that "No person shall be deprived of life, liberty or property, without due process of law."

124. Article I, Section 14 of the Utah Constitution protects against "unreasonable searches and seizures" and violation of the "right of the people to be secure in their persons, houses, papers and effects."

125. Article I, Section 15 of the Utah Constitution guarantees freedom of speech and of the press.

126. Defendants violated Plaintiff's rights under Article I, Section 1 by:

- a) Interfering with his liberty to move freely without surveillance;
- b) Obstructing his right to acquire information through public records; and
- c) Intruding upon his privacy and property interests in his residential information.

127. Defendants violated Plaintiff's rights under Article I, Section 7 by:

- a) Imposing arbitrary barriers to his access to public records;

- b) Creating a system where his only point of contact was a defendant with a conflict of interest; and
- c) Providing no meaningful process to challenge these restrictions.

128. Defendants violated Plaintiff's rights under Article I, Section 14 by:

- a) Unlawfully obtaining his private residential address through unspecified surveillance or database access;
- b) Seizing his private information without legal authority or legitimate purpose;
- c) Disseminating this information without justification.

129. Defendants violated Plaintiff's rights under Article I, Section 15 by:

- a) Retaliating against him for protected speech and press activities;
- b) Creating a chilling effect on his future journalistic endeavors; and
- c) Impeding his ability to gather information for public transparency purposes.

130. These violations provide a basis for relief directly under the Utah Constitution because:

- a) The violations were flagrant;
- b) Existing remedies may not fully address the Utah constitutional injuries; and
- c) Equitable relief is needed to prevent future violations of state constitutional rights.

131. As a direct and proximate result of Defendants' violations of the Utah Constitution, Plaintiff has suffered actual damages including invasion of privacy, reputational harm, emotional distress, and deprivation of his state constitutional rights.

COUNT XIV: False Light Invasion of Privacy (State Law)
Against Sessums, Richins, and John Does 1-139

132. Plaintiff re-alleges and incorporates by reference all preceding paragraphs as if fully set forth herein.

133. Defendants gave publicity to matters concerning Plaintiff that placed him in a false light before the public when:

- a) Sessums characterized Plaintiff as a "persistent issue" and dangerous individual requiring monitoring;
- b) Richins falsely stated Plaintiff had been "arrested in 2017 for stalking the Mayor in Oxford"; and
- c) These characterizations were disseminated to 139 city employees and officials.

134. The false light in which Plaintiff was placed would be highly offensive to a reasonable person, as:

- a) It falsely portrayed him as a stalker of public officials;
- b) It characterized him as dangerous or threatening without factual basis; and
- c) It was calculated to create fear and hostility toward him throughout local government.

135. Defendants knew of or acted in reckless disregard as to the falsity of the publicized matters, as evidenced by:

- a) The complete lack of factual basis for the claim of plaintiff being charged with "stalking the Mayor" in 2017;
- b) The failure to verify this serious allegation before broadcasting it; and
- c) The decision to widely disseminate these characterizations without legitimate purpose.

136. This false light publicity differs from the defamation claim as it focuses on:

- a) The false portrayal of Plaintiff's character, rather than specific false statements;
- b) The offensive nature of the characterization as a whole; and
- c) The impact on Plaintiff's peace of mind and dignity, beyond mere reputation.

137. As a direct and proximate result of Defendants' actions, Plaintiff has suffered actual damages including emotional distress, diminished ability to interact with government officials, and the ongoing burden of false characterization.

COUNT XV: Failure to Intervene (42 U.S.C. § 1983)
Against McCutchen and Supervisory Officials

138. Plaintiff re-alleges and incorporates by reference all preceding paragraphs as if fully set forth herein.

139. Constitutional violations were occurring against Plaintiff, including:

- a) Fourth Amendment violations through unlawful surveillance and obtaining of private information;
- b) First Amendment violations through retaliation for protected activities; and
- c) Fourteenth Amendment violations through dissemination of false, stigmatizing information.

140. Defendant McCutchen had actual knowledge of these violations as evidenced by:

- a) Plaintiff's March 27, 2025 phone call explicitly detailing Sessums' unlawful acquisition of private information;
- b) The impossibility of Sessums having obtained Plaintiff's address through legitimate means;
- c) McCutchen's supervisory authority over Sessums and the Oxford Police Department.

141. Defendant McCutchen had a realistic opportunity to intervene to prevent or remedy these violations through:

- a) Initiating an internal investigation into Sessums' conduct;
- b) Ordering the cessation of surveillance of Plaintiff;
- c) Issuing corrective communications regarding the false information disseminated;
- d) Disciplining Sessums for his improper conduct.

142. Despite this knowledge and opportunity, Defendant McCutchen failed to take any action to intervene, as demonstrated by:

- a) His explicit refusal to investigate when directly requested by Plaintiff;
- b) The absence of any corrective action;
- c) The continued operation of the alleged inter-jurisdictional monitoring.

143. Defendant McCutchen had a duty to intervene based on:

- a) His role as a supervisory official with authority over Sessums;
- b) His oath to uphold the Constitution;
- c) Department policies requiring investigation of misconduct allegations.

144. As a direct and proximate result of Defendant's failure to intervene, Plaintiff has suffered continuing constitutional violations and damages including ongoing surveillance concerns, emotional distress, and chilling of his First Amendment activities.

COUNT XVI: Declaratory Relief (28 U.S.C. § 2201)
Against All Defendants

145. Plaintiff re-alleges and incorporates by reference all preceding paragraphs as if fully set forth herein.

146. An actual controversy exists between Plaintiff and Defendants regarding:

- a) The lawfulness of obtaining and disseminating Plaintiff's private residential address;

- b) The constitutionality of Defendants' coordinated surveillance of Plaintiff;
- c) The lawfulness of Layton City's imposition of identification requirements for GRAMA requests; and
- d) The permissibility of channeling all of Plaintiff's records requests through a defendant with a conflict of interest.

147. This controversy is definite and concrete, touching on the legal relations of parties with adverse legal interests, and is real and substantial, admitting of specific relief through a decree of conclusive character.

148. Plaintiff specifically seeks declarations that:

- a) The acquisition and dissemination of Plaintiff's private residential address without legal authorization violated his constitutional and statutory rights;
- b) Layton City's requirement that GRAMA requesters present government-issued identification for non-private records violates Utah law;
- c) Defendants' coordinated efforts to monitor and obstruct Plaintiff's First Amendment activities were unlawful; and
- d) The dissemination of false and defamatory information about Plaintiff throughout city government violated his constitutional rights.

149. Such declarations are necessary and appropriate at this time because:

- a) They will clarify the legal rights and obligations of all parties going forward;
- b) They will provide a basis for the injunctive relief requested;
- c) They will prevent continuing and future violations of Plaintiff's rights; and

- d) They will serve the public interest by establishing parameters for governmental conduct regarding public records access and surveillance of First Amendment activities.

150. As a direct and proximate result of the uncertainty created by Defendants' unlawful conduct, Plaintiff has suffered actual damages including the chilling of his First Amendment activities and the inability to effectively exercise his statutory and constitutional rights.

VI. PRAYER FOR RELIEF

WHEREFORE, Plaintiff respectfully requests the Court:

- A. Award compensatory damages in an amount to be determined at trial;
- B. Award punitive damages against Defendants Sessums, Richins, Arrington, and McCutchen in their individual capacities;
- C. Issue declaratory judgments that:
 - 1. Defendants violated Plaintiff's constitutional rights under the First, Fourth, and Fourteenth Amendments;
 - 2. Defendants violated Plaintiff's rights under the Utah Constitution;
 - 3. Layton City's requirement of government-issued identification for GRAMA requests violates Utah law;
 - 4. The dissemination of Plaintiff's private residential address was unlawful; and
 - 5. The dissemination of false information about Plaintiff stalking a mayor was defamatory and placed him in a false light;
- D. Issue injunctive relief:

1. Requiring Layton City to comply with lawful GRAMA procedures without imposing extra-statutory requirements;
2. Prohibiting Defendants from further surveillance or monitoring of Plaintiff without legal cause;
3. Requiring the retraction of defamatory statements to all recipients;
4. Requiring comprehensive training on constitutional rights, GRAMA compliance, and proper use of law enforcement databases for all Defendants;
5. Requiring the implementation of safeguards to prevent similar violations in the future;
6. Require designation of a neutral records officer to handle Plaintiff's future GRAMA requests;

E. Award attorney's fees and costs under 42 U.S.C. § 1988;

F. Order service by U.S. Marshals pursuant to in forma pauperis status; and

G. Grant any other relief deemed just and proper.

Respectfully submitted this _____ day of _____, 2025

Matthew Reardon
Plaintiff, Pro Se

Exhibit A

SWORN DECLARATION OF MATTHEW OLIVER REARDON
Pursuant to 28 U.S.C. § 1746

I, **Matthew Oliver Reardon**, declare under penalty of perjury under the laws of the United States of America that the following is true and correct to the best of my knowledge and belief:

1. I am over the age of 18 and competent to make this declaration. I am the individual referenced in communications sent by Captain Hildon Sessums of the Oxford, Mississippi Police Department on February 5, 2025.
2. I moved into a residence in Layton, Utah late in the day on February 1, 2025. The residence is located at 1513 W 1960 N, Layton, UT 84041.
3. At the time I moved in, I had not submitted or disclosed that residential address to any person, agency, platform, or institution, public or private.
4. I had not yet updated or filed my new address with the Department of Motor Vehicles, the United States Postal Service, voter registration, tax filings, or any other governmental record-keeping agency.
5. I had not mentioned or published the address on any public platform, social media account, video, form, or document—nor had I provided it to any individual outside of the leasing process.
6. In fact, I did not have the address memorized and routinely had to refer back to a text message from my landlord to retrieve it. This further affirms that I could not have casually or inadvertently disclosed the address myself.
7. At no point prior to February 5, 2025, did I provide my new Layton address to any law enforcement agency, including but not limited to the Layton Police Department or any entity in Utah or Mississippi.
8. Nonetheless, on February 5, 2025, Captain Hildon Sessums of the Oxford Police Department emailed my full residential address to multiple officials within the Layton City Police Department

and Layton City government. The email falsely stated that “from our research, his current address is...”—despite the fact that no such research could have uncovered this address through any legal, official, or public means.

9. It is therefore my firm belief and sworn assertion that Captain Sessums could not have lawfully obtained this address through any public or law enforcement database, and that the address was either:

- Illegally acquired through surveillance, unlawful access, or misuse of government resources;
- Provided by an individual acting outside the bounds of law enforcement data protocols;

10. The address in question was then further disseminated by Lt. Riley Richins of Layton Police Department to over 100 recipients in a mass email, perpetuating a defamatory narrative and unlawfully broadcasting my private information.

11. I make this declaration in support of a federal civil rights complaint and related formal grievances involving violations of my Fourth and Fourteenth Amendment rights, and in response to targeted retaliation against my constitutionally protected First Amendment activities.

Executed this 31st day of March, 2025

at 12:17 PM.



Matthew Oliver Reardon

Exhibit C

Subject: Matthew Reardon - First Amendment Auditor

From: Riley Richins <r-richins@laytoncity.org>

Date: 2/5/2025, 9:46 AM

To: "PD Sworn" <PDSworn@laytoncity.org>, "PD Records"

<PDRecords@laytoncity.org>, "PD Dispatch" <PDDispatch@laytoncity.org>, kkuehn@laytoncity.org, kwaters@laytoncity.org, l-murdock@laytoncity.org, jwheatley@laytoncity.org, sking@laytoncity.org, eleavitt@laytoncity.org, dippolito@laytoncity.org, dtarantino@laytoncity.org, sporter@laytoncity.org, ckennedy@laytoncity.org, jcampbell@laytoncity.org, sjohnson@laytoncity.org, dmadsen@laytoncity.org, pball@laytoncity.org, mneugebauer@laytoncity.org, swillard@laytoncity.org, kericksen@laytoncity.org, sboelter@laytoncity.org, bcanard@laytoncity.org, cteague@laytoncity.org, solsen@laytoncity.org, wbrimhall@laytoncity.org, mmulipola@laytoncity.org, ihanson@laytoncity.org, lhales@laytoncity.org, keklund@laytoncity.org, cnimmo@laytoncity.org, aschenck@laytoncity.org, edorko@laytoncity.org, mmardirosian@laytoncity.org, knye@laytoncity.org, afelion@laytoncity.org, mlarson@laytoncity.org, sfiedler@laytoncity.org, egrandpre@laytoncity.org, cbobrowski@laytoncity.org, kkuehn@laytoncity.org, keklund@laytoncity.org, aswanson@laytoncity.org, mchatlin@laytoncity.org, tlyman@laytoncity.org, dwaters@laytoncity.org, adavis@laytoncity.org, dgardner@laytoncity.org, Riley Richins <r-richins@laytoncity.org>, jottesen@laytoncity.org, esmith@laytoncity.org, jtlynch@laytoncity.org, dteague@laytoncity.org, slewis@laytoncity.org, rsmith@laytoncity.org, zjones@laytoncity.org, trapp@laytoncity.org, kschoeder@laytoncity.org, jweekes@laytoncity.org, mbeavers@laytoncity.org, jjohnson@laytoncity.org, dhasseler@laytoncity.org, tmoore@laytoncity.org, shallows@laytoncity.org, gjohnson@laytoncity.org, djewel@laytoncity.org, jgarcia@laytoncity.org, jhill@laytoncity.org, thokum@laytoncity.org, mdonnelly@laytoncity.org, bfelion@laytoncity.org, jvoorhees@laytoncity.org, vcoleman@laytoncity.org, cgreim@laytoncity.org, dbaca@laytoncity.org, helwell@laytoncity.org, jgodfrey@laytoncity.org, jmoreno@laytoncity.org, hhellam@laytoncity.org, cmann@laytoncity.org, ddavidson@laytoncity.org, dpagano@laytoncity.org, mmyers@laytoncity.org, acrane@laytoncity.org, mlewis@laytoncity.org, cbowman@laytoncity.org, ngomm@laytoncity.org, rpranter@laytoncity.org, rrichardson@laytoncity.org, kjones@laytoncity.org, rdammeier@laytoncity.org, dsundly@laytoncity.org, tjohnsen@laytoncity.org, goblender@laytoncity.org, thuntington@laytoncity.org, sgianchetta@laytoncity.org, dbies@laytoncity.org, jluna@laytoncity.org, nhansen@laytoncity.org, svukovic@laytoncity.org,

hfurniss@laytoncity.org, tbyrd@laytoncity.org, dcourtney@laytoncity.org,
dwhitton@laytoncity.org, mholbrook@laytoncity.org, hmann@laytoncity.org,
jwoods@laytoncity.org, maverett@laytoncity.org, atubbs@laytoncity.org,
jfouts@laytoncity.org, jrussell@laytoncity.org, mkeene@laytoncity.org,
jpadilla@laytoncity.org, jtyner@laytoncity.org, hhanks@laytoncity.org,
mmonroe@laytoncity.org, sclarke@laytoncity.org,
mgreenamy@laytoncity.org, ewilkinson@laytoncity.org,
ealvarado@laytoncity.org, bburgess@laytoncity.org, gnewbold@laytoncity.org,
jaguilar@laytoncity.org, jrangassamy@laytoncity.org,
bdickman@laytoncity.org, clarson@laytoncity.org, dchecketts@laytoncity.org,
bctaylor@laytoncity.org, mpgraham@laytoncity.org, ehancock@laytoncity.org,
tnelson@laytoncity.org, tfoster@laytoncity.org, amckinley@laytoncity.org,
dslavens@laytoncity.org, nhoughtalen@laytoncity.org,
cbradley@laytoncity.org, dmccobb@laytoncity.org, lrubio@laytoncity.org,
rhigley@laytoncity.org, dgoodale@laytoncity.org

By way of information, we've received information that a "First Amendment Auditor" Matthew Oliver Reardon (3/24/87) has move from Oxford, Mississippi, to Layton City. His address is 1513 W 1960 N, Layton. Oxford PD has reported Reardon as a "persistent issue" for their department.

In 2017, Reardon was arrested for stalking the Mayor in Lafayette County. A restraining order was issued. Then in 2022, Reardon was arrested and charged with aggravated stalking when he violated the restraining order by walking into the City Hall with a video camera and walked toward the Mayor's office.

Yesterday, Reardon did a "Silent Audit" at Zions Bank on South Fort Lane here in Layton City. Our Officers responded and handled the situation professionally. Reardon was even appreciative of their professionalism and gave our Officers a "Pass". This serves as a good reminder to respond appropriately to these "auditors" and be professional while upholding the public's rights.

Here's the YouTube Link to yesterdays encounter.

<https://www.youtube.com/watch?v=OzDb1i4cZ9s>

Riley Richins

Lieutenant | richins@laytoncity.org | www.laytoncity.org



Police Department • 429 N Wasatch Dr • Layton, UT 84041 • Phone: (801) 336-3415 • Fax: (801) 336-3494



Exhibit B

From: Hildon Sessums <hsessums@oxfordpolice.net>

Sent: Wednesday, February 5, 2025 8:09 AM

To: Mark Chatlin <mchatlin@laytoncity.org>; Travis Lyman <tlyman@laytoncity.org>; Riley Richins <rrichins@laytoncity.org>; Allen Swanson <aswanson@laytoncity.org>

Subject: Matt Reardon (1st Amendment Auditor)

Good morning,

My name is Hildon Sessums, and I'm a Captain with the Oxford, MS, Police Department and a graduate of the FBI National Academy.

I'm reaching out regarding someone your department recently encountered. Matthew Oliver Reardon (DOB 3/24/1987) is a former Oxford resident, a convicted felon, and a persistent issue for our department. It appears he has now moved to your city.

We discovered a YouTube video in which he conducted a "First Amendment audit" at Zions Bank in Layton. Given his history with us and in Texas, I wanted to share some background information. From our research, his current address is:

1513 W 1960 N, Layton, UT 84041

Below are just a few of the links to previous incidents involving him:

- [Oxford Eagle: Reardon Sentenced to 2 Years in Prison](#)
- [Oxford Eagle: Prior Incident](#)
- [WREG: Man Banished from Lafayette County](#)

Please let me know if I can provide any additional information. I'd be happy to assist in any way.



Hildon Sessums

Captain

Oxford Police Department

9 Industrial Park Drive

Oxford, MS 38655

t: 662-232-2400

f: 662-232-2314

DECLARATION OF MATTHEW OLIVER REARDON

Pursuant to 28 U.S.C. § 1746

I, Matthew Oliver Reardon, declare under penalty of perjury under the laws of the United States of America that the following is true and correct:

1. I am a journalist and constitutional rights advocate residing in Layton, Utah. I am competent to make this declaration and do so of my own personal knowledge.
2. On March 31, 2025, I visited the FBI Salt Lake City Field Office in an attempt to deliver an affidavit alleging serious misconduct and potential federal crimes by Captain Hildon Sessums of the Oxford, Mississippi Police Department.
3. Captain Sessums has previously admitted to being a graduate of the FBI National Academy, and I believe that his ties to the FBI may explain the federal government's ongoing unwillingness to investigate his conduct or accept reports implicating him in civil rights violations and unlawful surveillance.
4. I have previously experienced refusal, stonewalling, and systemic inaction from the FBI in response to my attempts to report documented abuses involving Mississippi state and local officials. I believe this demonstrates a longstanding pattern of disregard or prejudice by the Bureau against me.
5. Upon arrival at the Salt Lake FBI office on March 31, 2025, I was not allowed past the outer visitor gate. FBI agents refused to even approach to retrieve my affidavit or engage in discussion. They instead demanded my driver's license and personal identification for the purpose of running a full background check, before they would even accept a piece of paper from me.
6. I was there for lawful purposes, attempting to submit documented evidence and a sworn statement alleging criminal activity by a law enforcement official.

7. I explicitly refused to submit to a background check, citing my Fourth Amendment right against unreasonable search and seizure. I told them that no victim of a crime should be required to give up their constitutional rights to report criminal conduct.
8. The FBI agent became hostile and refused to engage unless I complied with this arbitrary and unconstitutional demand. This procedure, which he claimed was "policy," served to chill my First Amendment rights, as I was ultimately prevented from submitting a criminal complaint or my affidavit due to their refusal to accept it without unlawfully searching me first.
9. I began reporting on the event live, standing in the publicly accessible visitor parking lot outside the gate of the FBI field office. I was peacefully reading from my declaration on camera when two FBI agents approached me without warning or conversation and ordered me to leave immediately, under threat of arrest for trespassing.
10. When I asserted my right to be present in the public visitor area as a journalist and civilian. I pointed out that taxpayer-funded federal property is not private, however they insisted the parking lot was "FBI-owned private property" and that I was no longer welcome. Their only response was: "If you don't leave, you will be charged."
11. In addition, an agent walked around my car to the rear and recorded my license plate number further escalating the surveillance, intimidation, and harassment against me.
12. I believe that this act was retaliatory, and that the FBI's actions-past and present-reflect a deliberate effort to suppress my speech, evade accountability, and shield Sessums from investigation due to institutional ties and complicity. 13. I believe this encounter, as well as prior conduct, establishes:
 - A violation of my First Amendment right to petition the government and report as a journalist.
 - A violation of my Fourth Amendment right against suspicion-less search.
 - A retaliatory pattern against a known journalist and rights advocate.
 - Probable unlawful sharing of surveillance/intelligence with Sessums by the FBI or its agents.

14. I reserve all rights to pursue appropriate legal action, including constitutional claims and discovery of FBI communications with Oxford, Mississippi law enforcement.

Executed on this 1st day of April, 2025 at 0700.

A handwritten signature in black ink, appearing to read 'MOR', is written over a horizontal line.

Matthew Oliver Reardon